

Court No. - 39

Case :- WRIT - C No. - 35997 of 2018

Petitioner :- Gyani Singh

Respondent :- State Of U P And Another

Counsel for Petitioner :- Dwijendra Prasad

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Rajiv Joshi,J.

Heard Sri Dwijendra Prasad, learned counsel for the petitioner, Sri Kamal Keshernani holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondent No.2 and learned Standing Counsel for respondent No. 1.

The petitioner in writ petition is seeking a direction upon the respondent No.2 to decide this representation dated 27.06.2017 with regard to the notice dated 17.10.2016 wherein the petitioner is alleged to have committed theft of electricity.

The contention of the petitioner is that in the notice dated 17.10.2016 requiring him to submit his reply before the respondent No.2- Executive Engineer, Electricity Distribution Division I Southern Electricity Distribution Corporation Limited, Aligarh District- Aligarh, the date of inspection has been mentioned as 19.09.2016 whereas in the first information report which is at page 24 of the writ petition, the date of the inspection has been mentioned as 17.09.2016.

In our view, this issue can be decided by the Executive Engineer himself. The petitioner has a remedy by way of filing his objection under part 6.8 of the U.P. Electricity Supply Code, 2005. The petitioner is at liberty to avail of the said remedy.

With the aforesaid observation, the writ petition is **dismissed**.

Order Date :- 30.10.2018

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